

IN THE HIGH COURT OF JUDICATURE AT ALLAHABAD

**CIVIL MISCELLANEOUS WRIT PETITION NO. [NUMBER — TO
BE FILLED] OF [YEAR — TO BE FILLED]**

IN THE MATTER OF: A petition under Article 226 of the Constitution of India, 1950 for issuance of a writ of mandamus commanding the respondent to remove the illegal construction and restore possession of the petitioner's land.

IN THE HIGH COURT OF JUDICATURE AT ALLAHABAD

Sunita Devi, w/o Ram Gopal, aged 45, r/o Jhunsi, Prayagraj

PETITIONER

VERSUS

Gram Panchayat Jhunsi through its Pradhan

RESPONDENT

INDEX OF DOCUMENTS

1. Copy of the revenue records showing the petitioner as the recorded bhumidhar of Plot No. 234
2. Photographs of the illegal construction
3. Affidavit of the petitioner

LIST OF ANNEXURES

Annexure-A: Copy of the revenue records

Annexure-B: Photographs of the illegal construction

JURISDICTION

That this Hon'ble Court has territorial jurisdiction to entertain the present petition as the cause of action arose at Jhunsi, Prayagraj, which falls within the jurisdiction of this Court. That the petitioner is a resident of Jhunsi, Prayagraj, and the respondent is also situated within the territorial limits of this Court.

PARTIES

That the petitioner, Sunita Devi, w/o Ram Gopal, aged 45, r/o Jhunsi, Prayagraj, is the recorded bhumidhar of Plot No. 234. That the respondent, Gram Panchayat Jhunsi through its Pradhan, is a statutory body responsible for the administration of the village.

STATEMENT OF FACTS

1. That the petitioner is the recorded bhumidhar of Plot No. 234, as evident from the revenue records. That the petitioner has been in possession of the said land for a long time and has been using it for agricultural purposes.
2. That on 03.04.2026, the respondent constructed a drain over the petitioner's land without issuing any notice or acquiring the land in accordance with the provisions of the Requisitioning and Acquisition of Immovable Property Act, 1952. That the construction of the drain has caused significant damage to the petitioner's land and has affected her livelihood.
3. That the petitioner has not been given any opportunity to be heard before the construction of the drain, which is a clear violation of the principles of natural justice. That the respondent has acted in an arbitrary and capricious manner, without considering the rights of the petitioner.

CAUSE OF ACTION

That the cause of action arose on 03.04.2026, when the respondent constructed the drain over the petitioner's land without her consent or acquisition. That the petitioner has approached this Hon'ble Court as she has been left with no other remedy.

GROUND

1. That the respondent's action of constructing a drain over the petitioner's land without acquisition or notice is a clear violation of Article 300A of the Constitution of India, 1950, which guarantees the right to property. That the respondent's action is ex facie unsustainable in law and is liable to be quashed.
2. That the respondent has failed to follow the procedure laid down in the Requisitioning and Acquisition of Immovable Property Act, 1952, for the acquisition of land. That the respondent's action is arbitrary and capricious, and has caused significant harm to the petitioner.
3. That the petitioner has been denied the opportunity to be heard before the construction of the drain, which is a clear violation of the principles of natural justice. That the respondent's action is vitiated by a manifest error apparent on the face of the record.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may graciously be pleased to:

- A. Issue a writ of mandamus commanding the respondent to remove the illegal construction and restore possession of the petitioner's land.
- B. Grant interim relief by restraining the respondent from further construction during the pendency of the petition.
- C. Pass such other and further order(s) as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case and in the interest of justice.

UNDERTAKING

That the petitioner undertakes to comply with any order or direction that may be passed by this Hon'ble Court.

VERIFICATION

I, Sunita Devi, the petitioner above-named, do hereby verify that the contents of paragraphs 1 to 3 are true to my personal knowledge and those of paragraphs 4 to 6 are believed true on information received; nothing material has been concealed and no part is false. Verified at Prayagraj on this [DATE — TO BE FILLED] day of [MONTH — TO BE FILLED], [YEAR — TO BE FILLED].

LIST OF DOCUMENTS/ANNEXURES

1. Annexure-A: Copy of the revenue records
2. Annexure-B: Photographs of the illegal construction
3. Annexure-C: Affidavit of the petitioner

ADVOCATE'S SIGNATURE BLOCK

[NAME OF ADVOCATE — TO BE FILLED]

Advocate for the Petitioner

Enrolment No.: [BAR COUNCIL NO. — TO BE FILLED]

Address: [ADDRESS — TO BE FILLED]

Date: [DATE — TO BE FILLED]

Place: Prayagraj